

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHRISTOPHER MARSH,

Petitioner

VS.

VESNA MARSH,

Respondent

) Case Number: FDI-15-783933

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9:00 AM on 9/8/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

Wife shall be prepared to explain whether she agrees to Husband's proposal. Both parties shall be prepared to provide their position on how the fees for a third-party tax professional should be allocated between the parties.

A. Procedural History

1) Petitioner Christopher Marsh (Husband) and Respondent Vesna Marsh (Wife) entered into a Stipulated Judgment which was filed on 11/24/2021. Both parties are currently self-represented.

2) Paragraph 3(G) of the Stipulated Judgment filed on 11/24/2021 provides in relevant part:

- a. "Vesna is awarded the following retirement accounts and all funds held therein: Aviva/Tk Account xxx-8658, and...Aviva/Tk Account xxx-1899. The accounts are currently in Chris' name. The parties will meet and confer and work together in preparing the necessary documents for the accounts to be transferred to Vesna's name. The cost of

1 preparation of any documents necessary to effectuate the transfer shall be split 50/50
2 between the parties.”

3 3) No substantive pleadings were filed in this matter since entry of Judgment until Wife filed the
4 instant Request for Order on 3/13/2026. Wife states that Aviva, which is a United Kingdom
5 pension entity, has informed Wife that it requires an England and Wales pension sharing order
6 before it can transfer the Aviva accounts into Wife’s name. Wife states that at the time of
7 settlement, she agreed to accept Husband’s Aviva UK pension interests because she “understood
8 their value to be roughly equivalent to a premarital gift from my parents that was at issue in the
9 settlement discussions” but she “did not then understand the later implementation problems
10 associated with transferring those pension interests under United Kingdom rules.” Wife states she
11 has attempted to work with Husband regarding these issues but he has not been cooperative and
12 he failed to sign a Letter of Authority to authorize her to obtain plan-specific information from
13 Aviva directly.

14 4) At the prior 5/26/2026 hearing, neither party appeared and the party adopted its Tentative Ruling
15 without object from either party. As memorialized in the Findings and Order After Hearing filed
16 6/18/2026, the Court ordered the parties to do the following:

- 17 a. Wife shall draft a Letter of Authority which authorizes Wife to obtain information
18 regarding Aviva/Tk Account xxx-8658 and Aviva/Tk Account xxx-1899 directly from
19 Aviva. The Letter of Authority shall contain the information outlined by the Aviva
20 Customer Services Representative in Wife’s Exhibit E.
- 21 b. Within 48 hours of being presented with the Letter of Authority drafted by Wife,
22 Husband shall sign and date the letter and return the letter to Wife.
- 23 c. Husband shall forthwith investigate what he can do to have Aviva/Tk Account xxx-8658
24 and Aviva/Tk Account xxx-1899 transferred into Wife’s name and take any steps
25 necessary to effectuate those transfers.
- 26 d. A review hearing is set for Tuesday, 8/4/2026 at 9:00 AM in Dept. 404 for the Court to
27 review Husband’s compliance with the orders set forth above and for the Court to
28 consider Wife’s request to award Wife an equalizing offset from Husband’s other
29 property or assets if direct transfer of the Aviva pension interests cannot be completed.

- 1 5) On 7/23/2026, Wife filed a Declaration. Wife states she prepared a Letter of Authority and
2 Husband signed it. Wife also states the Letter of Authority was transmitted to Aviva and Aviva
3 acknowledged receipt. Wife further states that Aviva provided statements showing that the stated
4 transfer value of the two plans as of 6/7/2026 was £187,652.60.
- 5 6) At the prior 8/4/2026 hearing, both parties appeared. The Court set a further review hearing on
6 9/8/2026 and ordered Husband to file and serve an update declaration regarding his proposal as to
7 how he planned to transfer the funds from the Aviva accounts to Wife, how the taxes would be
8 handled, and at what age he could start withdrawing funds.
- 9 7) On 8/28/2026, Husband filed a Declaration. Husband states that the combined value of the
10 pension policies is £191,000. Husband states that a direct transfer or division of the policies has
11 proven impracticable “because of the administrative and cross-border complications associated
12 with transferring UK pension assets to my former spouse in the United States.” Husband states he
13 becomes eligible to access the pension funds in December 2026 when he reaches age 55.
14 Husband proposes that he retain a CPA with experience in U.S.-UK cross-border taxation and UK
15 distributions to U.S. citizens. Specifically, Husband states he will liquidate the pension assets in a
16 single or multiple withdrawal depending on the advice of the cross-border tax
17 professional. Husband states Aviva may be required to deduct UK income tax and because he is
18 a United States citizen and taxpayer there may be U.S. taxes as well. Husband proposes that he
19 give Wife the “final amount after tax settlement.” Husband also states that if the final tax position
20 cannot reasonably be determined before substantial pension proceeds become available, he will
21 transfer available proceeds subject to later refunds and credits from Wife. Husband states that he
22 will need a tax professional to advise him regarding: (a) the portion of each pension withdrawal
23 taxable in the UK, (a) the portion of each pension withdrawal taxable in the UK, (b) the amount
24 of UK tax properly due, (c) the amount of any temporary or emergency UK tax withholding, (d)
25 the amount of any UK tax refund or rebate available, (e) the U.S. tax basis, if any, associated with
26 the pension policies, (f) the portion of the pension distributions taxable in the United States, (g)
27 the availability and amount of U.S. foreign tax credits arising from UK tax paid, (h) whether
28 withdrawal in one payment or a limited number of payments materially affects the combined UK
29

1 and U.S. tax liability, and (i) the fastest reasonably practicable withdrawal method that does not
2 create a material and unnecessary additional tax cost.

3 8) There is no Proof of Service demonstrating service of Husband's declaration on Wife.

4 9) Wife has not filed a declaration since the prior 8/4/2026 hearing.

5 **B. Findings and Order**

6 1) **The parties are ordered to appear. Wife shall be prepared to explain whether she agrees to**
7 **Husband's proposal. Both parties shall be prepared to provide their position on how the**
8 **fees for a third party tax professional should be allocated between the parties.**